

2018 P L C (C.S.) 842

[Lahore High Court]

Before Jawad Hassan, J

ZULFIQAR ALI

Versus

PROVINCE OF THE PUNJAB and 3 others

W.P. No.66652 of 2017, decided on 9th May, 2018.

Civil service---

---Contract Appointment---Termination of service---Mala fide---Proof---Petitioner employee was terminated on the allegations of poor performance and inefficiency---Contention of employee was that he was terminated without affording any opportunity of personal hearing---Validity---Petitioner employee was appointed on contract basis---Employee after accepting terms and conditions of his contract submitted his joining report---Extension in contract appointment could not be granted as a matter of routine---Appointing authorities were to take into consideration the performance of contract employee and extension in contract appointment could only be recommended if performance of employee remained good---Behavior of employee remained unsatisfactory towards his superiors/subordinates---No mala fide had been proved on record on the part of department---Mere allegation of mala fide was not sufficient to set aside the impugned order---Case of petitioner employee was considered by the Committee with the mandate to submit its recommendations with regard to contract employees---Employee was not recommended by the said Committee for regularization/extension in the contract period---Opportunity of personal hearing was afforded to the employee and thereafter inviting his reply/defence impugned order was passed---Relationship of master and servant existed where employee was on contract basis---Constitutional petition in circumstances was not maintainable--No illegality or infirmity had been pointed out in the impugned order---Constitutional petition was dismissed in circumstances.

Lt. Col. Rtd. Aamir Rauf v. Federation of Pakistan through Secretary M/o Defence and 3 others 2011 PLC (CS) 654; Nadeem Ahmed v. Pakistan State Oil Company Limited and another 2005PLC (C.S.) 1447; Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others 2017 PLC (C.S.) 488 and Mubashar Majeed v. Province of Punjab and 3 others 2017 PLC (C.S.) 940 rel.

Zafar Iqbal Chohan for Petitioner

Ch. Sultan Mehmood, Assistant Advocate-General.

Dr. Shahid Nabeel on behalf of the Respondents Nos.2 to 4.

Shahid Razzaq, Assistant Litigation Officer.

JUDGMENT

JAWAD HASSAN, J.---Through the instant constitutional petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner has sought setting aside the impugned orders dated 30.06.2017 and 24.08.2017.

2. The brief facts revealing from the petition are that the petitioner was appointed as Laboratory Technician (BS-10) in the Respondents Department on contract basis initially for a period of three years but subsequently from time to time extended up-till 30.06.2017 on the terms and conditions already stipulated in the appointment letter. The Petitioner has unblemished service record on his part but all of a sudden vide the impugned order dated 30.06.2017 the Petitioner contract was terminated on the allegations of 'poor performance', 'inefficiency' and 'granting appointment by providing documents not fulfill the criteria of recruitment'. Feeling aggrieved thereby the Petitioner preferred departmental appeal before the Respondents which was rejected vide the impugned order dated 24.08.2017. Hence, this petition.

3. Report and parawise comments have been filed on behalf of the Respondents vehemently denying the allegations levelled in the petition and praying for dismissal of the same. The Respondents, in support of their contentions, have also submitted certain documents along with the report and parawise comments.

4. Learned counsel for the Petitioner inter alia contended that the Petitioner was fully qualified and performing his duties with due diligence but all of a sudden he was terminated without affording any opportunity of personal hearing; that the impugned order has been passed arbitrarily which is against the principle of natural justice; that the contract of the Petitioner has been terminated on the basis of false allegations despite the fact that he was issued certificate of excellent performance prior to his termination i.e. on 23.06.2017, as such mala fide on the part of the Respondents is explicit; that the other colleagues of the Petitioner have been regularized but the Petitioner has been terminated without any reason.

5. On the other hand, learned Law Officer has vehemently controverted the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of the petition on the grounds that the Petitioner was terminated as per the terms and conditions of his contract employment which he accepted at the time of joining and now he cannot deviate from the same; that the Petitioner being contractual employee has no vested right of regular appointment and can be terminated at any stage as per the employment agreement and contrary policy; that this petition is not maintainable against a contractual employee in view of plethora of judgments of the apex Court.

6. I have heard the arguments of the learned counsel for the parties and examined the record.

7. Admittedly, the Petitioner was appointed on purely contract basis in the Respondents/Department vide appointment letter dated 08.10.2007 which was issued under the

Contract Appointment Policy, 2004 (the "Policy"). The Petitioner after accepting the terms and conditions of his contract employment including the Policy submitted his joining report. The specific terms in the employment contract, containing certain terms and conditions, are inserted. The relevant clauses are mentioned in the impugned order which reflects that the Petitioner shall not claim extension in his contract appointment as matter of right and the extension in contract appointment shall not be granted as a matter of routine. The appointing authorities shall take into consideration the performance of the contract employees and extension in contract shall only be recommended if his performance remained good/very good. The reasons for termination of contract/not extending the contract of the Petitioner are mentioned in the impugned order i.e. poor performance, inefficiency as well as granting appointment by providing documents not fulfill the criteria of recruitment. The report and parawise comments reveal that the behavior of the Petitioner remained unsatisfactory toward his superiors/subordinates as well as his own assignments which resulted into termination of his contract. To substantiate the impugned order, copies of the sufficient documents have been appended with the report and parawise comments. Furthermore, mala fide on the part of the Respondents is alleged for not extending the contract of the Petitioner but no mala fide has been proved on record, as such mere allegation of mala fide is not sufficient to set aside the impugned orders.

8. Moreover, the report and parawise comments also reveal that the case of the Petitioner was considered by the Committee constituted with the mandate to submit its recommendations regarding the contract employees but the Petitioner was not recommended by the said Committee for regularization/extension in the contract period due to want of required qualification for the said post. The impugned order dated 24.08.2017 reflects that opportunity of personal hearing was provided to the Petitioner and thereafter inviting his reply/defence the same was passed, as such no exception can be taken to it.

9. It is an established principle that where employment is on contract, there is a relationship of master and servant and in such like cases the constitutional petition under Article 199 of the Constitution is not maintainable. Reliance in this regard can be placed on Lt. Col. Rtd. Aamir Rauf v. Federation of Pakistan through Secretary M/o Defence and 3 others (2011 PLC (CS) 654) and Nadeem Ahmed v. Pakistan State Oil Company Limited and another (2005 PLC (C.S.) 1447).

10. The Hon'ble Division Bench of this Court in case titled Dr. Abid Ali v. Chief Secretary, Government of Punjab and 3 others (2017 PLC (C.S.) 488) has held that the employee, after accepting terms and conditions of his contract employment had submitted his joining report. Service of such employee could be terminated without assigning any reason. Employee had no right to claim extension in his contract period as a vested right. Behaviour of employee remained unsatisfactory towards his superior which resulted into his termination. In Case titled Mubashar Majeed v. Province of Punjab and 3 others (2017 PLC (C.S.) 940) the Hon'ble Division Bench of this Court has also held that employee could not claim extension of the contract as a matter of right rather it was the prerogative of the competent authority either to dispense with services of such employee or continue with the same by extending the contract. The judgments referred by the learned counsel for the Petitioner cannot be relied upon as each and every case has its own facts and circumstances and therefore, distinguishable to the case in hand.

11. In view of above, I see no illegality or legal infirmity in the impugned orders. Consequently, the instant petition is devoid of any merit and is accordingly dismissed.

ZC/Z-13/L

Petition dismissed.